

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, SEPTEMBER 22, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, September 22, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, September 21, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at **8:30 a.m. in Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0090373 Flores, Daniel v. MS & Sons Motor Corp.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Deposit Bond and Discharge Surety

The unopposed motion to deposit bond and to be discharged from the action by defendant/cross-complainant Defendant and Cross-Complainant American Contractors Indemnity Company (ACIC) is granted in part.

ACIC seeks to deposit with the court \$50,000 and be discharged from liability pursuant to Code of Civil Procedure section 386 et seq. The court will discharge a plaintiff stakeholder from liability who claims no interest in the res when "double or multiple claims are made, or may be made, by two or more persons." (Code Civ. Proc., § 386, subd. (b).) A surety may interplead the bond funds to minimize the surety's risk. (*Karton v. Ari Design & Construction Inc.* (2021) 61 Cal.App.5th 734, 751-54.)

ACIC presents evidence that it issued a Motor Vehicle Dealer Bond, Bond No. 100825247 for MS & Sons Motor Corporation dba Roseville City Motors, as principal pursuant to Sections 11710 and 11711 of the California Vehicle Code in the sum of

\$50,000.00 (Bond). ACIC is informed and believes the Bond was in effect at the time of the occurrence of the event described herein. Cross-defendants made adverse and conflicting demands upon ACIC for the Bond. ACIC is uncertain if additional parties may intervene as a cross-defendant later in the proceedings. As a result of these claims against the Bond, and since ACIC is uncertain as to how much to pay to each claimant or to claimants in the future who may make demand upon its bond, on April 21, 2025, ACIC filed its cross-complaint for interpleader. ACIC has no interest in the controversies between the cross-defendants and its principal, and makes this motion to sever ACIC's connection to the disputed funds, and be discharged and dismissed from the action.

The motion to deposit bond is granted.

As to attorney's fees, the court has the discretion to award reasonable attorney fees "from the amount in dispute which has been deposited with the court." (Code Civ. Proc., § 386.6, subd. (a).) ACIC must deposit the funds with the court prior to obtaining an attorney's fees award from it. (*Wells Fargo Bank v. Zinnel* (2004) 125 Cal.App.4th 393, 400–03.) A review of the court's file reveals ACIC has not yet deposited bond funds with the court. As such, the request for attorney's fees is denied without prejudice.

2. M-CV-0092493 Wells Fargo Bank NA v. Santiago, Jazz

Motion for Judgment on the Pleadings

Plaintiff's request for judicial notice is granted.

The court may grant a motion for judgment on the pleadings in favor of a plaintiff where the complaint states facts sufficient to constitute a cause of action, and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The grounds for the motion must appear on the face of the challenged pleading, or be based on facts which the court may judicially notice. (*Id.* subd. (d).)

Preliminarily, while plaintiff's motion refers to a claim for breach of written contract, for breach of implied-in-fact contract, and for common counts, plaintiff's complaint in this action alleges breach of written contract and breach of implied-in-fact contract. The court will analyze this motion based on the causes of action included in plaintiff's complaint.

Here, plaintiff's complaint filed on June 18, 2025 alleges sufficient facts to support the cause of action for breach of implied-in-fact contract by showing that the parties entered into a contract, that the plaintiff performed the contract, and that the defendant breached the contract by failing to pay the plaintiff, resulting in monetary damage to the plaintiff. Defendant's answer filed on September 29, 2025 fails to deny any allegations within the complaint or raise a defense to the complaint. Further, the court granted an order deeming the truth of the matters specified in plaintiff's requests for admissions (set one) as admitted by written ruling on May 22, 2026, which supports a finding that plaintiff has alleged sufficient facts to support its cause of action. Judgment on the pleadings is appropriate in these circumstances and the motion is granted without leave to amend.